THE CRIMINAL RESPONSIBILITY OF THE INSANE.

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I ought, perhaps, in the first place to endeavour to justify my choice of subject.

The connection between obstetric medicine and the criminal responsibility of the insane is certainly not very obvious, and it may to many of you have appeared presumptuous in me to undertake to speak to you on a subject so remote from that with which my name is associated in this hospital. I have, however, some claim to a hearing. For ten years (1872 to 1882), besides being for the greater part of the time on the staff of a special hospital for women and children, I held the appointment of police surgeon to two out of the four divisions into which, for police purposes, Manchester is divided; whilst for seven years (1879 to 1885) I was Lecturer on Medical Jurisprudence in the medical department of the Owens College in that city. As police surgeon I had occasion to appear as medical witness for the Crown in many important criminal trials, in some of which the defence of insanity was set up on behalf

[1] Read before the St. Thomas's Hospital Medical and Physical Society, January 17th, 1895.

of the accused. This experience gave me a great interest in the medico-legal aspects of insanity,—greater, perhaps, than in any other of the many widely differing subjects grouped together under the general title of medical jurisprudence. Hence, when I came to have to teach medical jurisprudence, this particular subject, having already engaged much of my thought, had a special attraction for me. On relinquishing the chair in 1885 it was my duty to deliver a public address in the college, and I selected on that occasion the theme I have again chosen to-night. I am sure you will forgive me if this evening I lay my former address under somewhat heavy contribution.

For many years medical writers have been protesting against the existing law in this country with reference to the plea of insanity in criminal cases. Their protest has, however, been of little avail, for lawyers have for the most part expressed themselves as more or less contented with things as they are, and public opinion has never been sufficiently aroused on the subject to bring an alteration of the law relating to it within the range of practical politics. A notable exception to the attitude usually assumed on this question by lawyers occurred in the person of the late Mr. Justice Stephen. In his 'History of the Criminal Law of England' he frankly declares that a change is necessary, and the chapters in which he deals with the subject constitute one of the most valuable, most forcible, and at the same time most temperate contributions to the discussion that have yet appeared.

Public and professional attention has been recently directed to the subject afresh in consequence of a paper read by Dr. Lionel Weatherley before the British Medical Association, in August, 1894, at Bristol, and of the discussion that followed the reading of that paper. Since the meeting the discussion has been continued in the correspondence columns of the 'Times,' many eminent members both of the medical and legal profession having taken part in the controversy.

It is admittedly a matter of the utmost difficulty to define with anything like precision the point at which we should cease to regard crime as the result of depravity, and

treat the wrong-doer, not as a criminal, but as the victim of disease. Some writers have gone so far as to maintain that almost every criminal, and certainly every habitual criminal, ought in strict justice to be regarded as only in a very limited sense accountable for his actions. And if we set aside the interests of society, and the necessity under which every community lies to protect itself from those who offend against its laws, there is much to be said in favour of this view. It is surely unnecessary at the present day to point out that just as truly as the material brain is the organ of thought, or of the intellectual faculty, defect of or injury to certain portions of which is certainly attended with defect of or injury to the intelligence, so, too, that which has been termed (perhaps not very happily) the moral sense has its seat in the material brain, and the integrity of the moral sense is primarily dependent upon physical conditions, —that is, upon normal and healthy development, and upon freedom from injury or disease. If this proposition, stated so nakedly, should seem startling, and to savour of materialism, I would remind you that it is merely the statement of a truth that we are practically acknowledging every day. We hear of a child, for example, that betrays from its earliest years the most evil propensities, that no discipline of kindness or severity can train to truthfulness, and that comes eventually to be recognised as altogether exceptional, and neither to be treated by ordinary methods nor judged by ordinary standards; and, learning on inquiry that the child's grandfather was insane, or that his father was a confirmed drunkard, we immediately connect the two facts, and accept the one as the explanation of the other. Yet that child's moral perversion can be the result of inheritance only by being dependent upon some physical defect of brain. Let me illustrate the matter in another way. It is a fact well known to every one who has to do with insane people, that in many forms of insanity due to brain disease one of the earliest and most unmistakable symptoms is a deterioration of the moral character; the straightforward man becomes deceitful and cunning, the kind and considerate man becomes surly and self-indulgent, the pure-minded

man becomes immodest, the man of even temper becomes irritable and passionate. In attributing these signs of deterioration of the moral sense to a physical alteration which is taking place in the man's brain, we are accepting the truth of the proposition that the soundness of the moral sense depends upon the soundness of the brain, or in other words that the moral sense, equally with the intellectual powers, has a physical basis in the brain. A further illustration of the manner in which the maintaining of a correct moral standard may depend upon physical conditions is to be found in the moral breakdown that so frequently occurs as a result of overstrain and exhaustion of the nervous system. The condition to which I refer is graphically described by my late friend and colleague, Dr. Ross of Manchester, in his work on the 'Diseases of the Nervous System.' "When the nervous system," he says, "is subjected to severe strain and becomes exhausted, the conscience, which is the highest product of the evolution of character, becomes blunted, the power of self-control is enfeebled, and the individual may find that he is in the grip of a great temptation which may take years of painful struggle to overcome" (vol. ii, 2nd edit., p. 658). He goes on to show that when under these circumstances a breakdown occurs, it does so at the weakest point of the man's character, whether that weakness be inherited or acquired. "The varying strength of inherited appetites," he continues, "is admirably stated by Robert Collyer, of Chicago. 'In the far-reaching influences that go to every life,' says Mr. Collyer, 'and away backward as certainly as forward, children are born with appetites fatally strong in their nature. As they grow up the appetite grows with them, and speedily becomes a master, the master a tyrant, and by the time he arrives at manhood the man is a slave. I heard a man say that for eight-and-twenty years the soul within him had had to stand like an unsleeping sentinel, guarding his appetite for strong drink. To be a man under such a disadvantage, not to mention a saint, is as fine a piece of grace as can well be seen. There is no doctrine that demands a larger vision than this of the depravity of human nature. Old Dr. Mason used to say that as much grace as would

make John a saint would barely keep Peter from knocking a man down.' "

The subject is a fascinating one, but I have not time now to pursue it further. I only wish to show that the connection between crime and disease is much more intimate than at first sight appears; and that those who lay such stress on this connection as to doubt whether the majority of criminals are actually accountable for their actions, can adduce much testimony in support of their view, although their conclusions may be, and no doubt are, at present hopelessly impracticable.

At the other end of the scale are those writers of whom Smollett may be taken as a type, who would under no circumstances accept insanity as an excuse for crime. The passage in which Smollett gives expression to his views on the subject is worth quoting, not only because he is believed to have been the first to express these views in writing, but also because, as he puts the issue very clearly, his statement will afford us an opportunity of examining whether the opinions it embodies rest on any solid foundation. He has been describing the assassination by Earl Ferrers, of his steward, Mr. Johnson, whom his lordship believed to be implicated in a conspiracy against him. Every one who knew Earl Ferrers considered him to be insane. Madness was hereditary in the family, and at the trial the plea of insanity, which he had reluctantly allowed to be set up, was amply supported by witnesses. He was, nevertheless, condemned to death, and his execution took place without his betraying the least sign of contrition. "This unhappy nobleman's disposition," says Smollett, "was so dangerously mischievous, that it became necessary for the good of society either to confine him for life as an incorrigible lunatic, or give him up as a sacrifice to justice." And then he goes on to say, "Perhaps it might be no absurd or unreasonable regulation in the Legislature to divest all lunatics of the privilege of insanity, and, in cases of enormity, subject them to the common penalty of the law; for though, in the eye of casuistry, consciousness must enter into the constitution of guilt, the consequences of murder committed by a maniac may be as pernicious to society as those of the most criminal

and deliberate assassination; and the punishment of death can hardly be deemed unjust or rigorous when inflicted upon a mischievous being, divested of all the perception of reason and humanity."[1] I have heard similar views expressed in our own day. Every now and then there occurs a case of homicide by a madman, where the attack is so unprovoked, and its details so horrible, that the public is seized with a sense of dreadful insecurity, and men begin to wonder whether it would not be a good thing to rid society of any further risk, or trouble, or expense in connection with this particular madman, by hanging him. It might, they think, act as a deterrent on other madmen, and would be as kind to the man himself as consigning him to a lunatic asylum for the rest of his life. With regard to the deterrent effect upon other madmen, there are one or two points of which those who think such an effect possible seem to lose sight. The first is that under the present system, according to which insanity is nominally regarded as an excuse for crime, a man who is thinking of taking the life of another (and, for reasons that I shall state presently, it is chiefly in cases of homicide that insanity is pleaded) has, in the case of his being apprehended, tried, and convicted, a sufficiently fearful prospect before him. If the jury pronounce him sane he will be sentenced to be hanged, and either that sentence will be carried out, or supposing a successful appeal to be made on his behalf to the Home Secretary, the death sentence will be commuted to one of penal servitude for life. If he be found insane he will be confined to a lunatic asylum and to the company of madmen for the rest of his days. Surely nothing can be more likely to act as a deterrent than the prospect either of death, or of one of these two dreadful alternatives. But, further, the deterrent influence of a punishment can only come into play in the case of a man who is capable of reflecting before he commits a crime. In the great majority of insane homicides the capacity for reflection is either annihilated or is in abeyance; no consideration of consequences affects their conduct. And even in the case of that small number who may be supposed in some sort to weigh the conse-

[1] Smollett, 'Hist. Eng.,' 4 vols., London, 1848, vol. iv, pp. 347—356.

quences of the act they are contemplating, there is abundant evidence to show that death has no terrors for them; they regard it with calm indifference, if not as a thing to be desired and welcomed.[1] But there remains yet to be urged what is to my mind the strongest of all arguments against the indiscriminate hanging of sane and insane alike; that, namely, which is based on considerations of justice and humanity. Smollett says that to inflict the punishment of death on a mischievous being divested of his reason cannot be deemed *unjust*. Whatever men may say as to the "simplicity and convenience" of the method of treating all alike, I imagine few would be disposed to agree with Smollett in upholding its justice. It may be recommended as being "sharp, stern, and cheap;" but, as Dr. Guy says, its justice is such "as no painter or sculptor ever yet imagined, the bandage very tight over the eyes, the scales nowhere."

It must be remembered that Smollett wrote at a time when the treatment of the insane in this country was barbarous beyond description, and when, even in such large and important hospitals as Bethlem and St. Luke's, lunatics were placed in cages like wild beasts, and made objects of public exhibition. A great change has, however, taken place in the management of the insane. The humanity which has built and endowed hospitals for all kinds of bodily disease, has been extended to the unfortunate victims of mental disease, and has led to the establishment throughout the country of institutions for their care and treatment, where medical men, second in ability to none in their profession, devote their lives to the study of insanity, and to the amelioration of the condition of its victims. All this signifies that a change amounting to a complete revolution has been effected since Smollett's time in the attitude which

[1] Dr. Guy published some years ago, in the 'Journal of the Statistical Society,' a paper giving an account of a laborious analysis which he had undertaken of the figures supplied by the judicial statistics of this country for a period of seventy years; and the conclusion at which he arrived was that "the punishment of death does not act as a deterrent to the weak-minded and the insane, but, on the contrary, either attracts or fascinates them, or suggests to them thoughts of killing."

the community assumes towards the weak-minded and the insane, and a suggestion which one can imagine to have been then received with favour strikes us now as intolerable in its inhumanity.

The truth lies between these two extremes of opinion, and the law recognises this by accepting insanity, within certain limitations, as an excuse for crime. It is obvious, however, that it would be unsafe to accept the plea without requiring evidence of the insanity; "lest on the one side," to quote the quaint words of Sir Matthew Hale, "there be a a kind of inhumanity towards the defects of human nature, or, on the other side, too great an indulgence given to great crimes." Every person, therefore, accused of a crime is held to be sane and to be legally responsible for his actions until he is proved to be otherwise. In other words, whenever the plea of insanity is set up, it rests with the accused, or with those to whom his defence is entrusted, to prove the existence of the insanity. I propose now to inquire what amount of proof is necessary in order that the plea of insanity shall be sustained,—what are the tests, in short, to which the evidence in any given case is submitted, and whether those tests are in accordance with the present state of our knowledge of mental disease. It will facilitate this inquiry and further the object I have in view if I show from the records of one or two of the State trials[1] during the last and early part of the present century on what principles the decisions of our courts of law have from time to time been regulated in cases where the defence of insanity has been set up.

In the year 1723 a man named Arnold, who appears to have been of weak intellect from his birth, shot at and wounded Lord Onslow, and was defended at his trial on the ground of insanity. It was shown that he had been regarded as a lunatic by his family and neighbours for several years previously, but as his insanity had hitherto declared itself in harmless ways he had been suffered to be at large.

[1] State trials are selected because these are the only trials reported with a fulness and accuracy sufficient for our purpose, and also because, owing to their importance and to the public interest they excited, some of them have become historical.

"Among other unfounded notions, he believed that Lord Onslow, who lived in his neighbourhood, was the cause of all the tumults, disturbances, and wicked devices that happened in the country. . . . He was in the habit of declaring that Lord Onslow sent his devils and imps into his room at night to disturb his rest, and that he constantly plagued and bewitched him, . . . so that he could neither eat, drink, nor sleep for him." Under the influence of these delusions he made the attempt on the life of Lord Onslow, manifesting subsequently no compunction for what he had done. It might be thought that the evidence of insanity here was overwhelming, but the judge was not satisfied. He is reported to have told the jury "that it is not every kind of frantic humour, or something unaccountable in a man's actions, that points him out to be such a madman as is exempted from punishment; it must be a man that is totally deprived of his understanding and memory, and doth not know what he is doing, no more than an infant, than a brute, or a wild beast." The jury thereupon rejected the plea, and it was only on the intercession of Lord Onslow himself that the death sentence was commuted to one of imprisonment for life. Clearly, then, the law at that time held an insane person responsible for crime so long as he retained the slightest vestige of reasoning power. Yet it deprived him, and has ever since deprived him, of the management of himself and his affairs,—that is to say, has visited him with civil disability, on evidence of a degree of mental incapacity falling far short of such an utter deprivation of reason. It is difficult to find any logical ground for this distinction between the legal consequences of the civil and criminal acts of an insane person. To quote the words of a very able American writer on this subject, it is as if the law said to the insane man, "Your reason is too much impaired to manage your property; you are unable to distinguish between those measures which would conduce to your profit and such as would end in your ruin, and therefore it is wisely taken altogether from your control. But if, under the influence of one of those insane delusions that have rendered this step necessary, you should kill your neighbour, you will be supposed to have acted under the

guidance of a sound reason, you will be tried, convicted, and executed like any common criminal whose understanding has never been touched by madness."

The extremely crude notions of criminal responsibility which found expression in the ruling of Mr. Justice Tracy continued to prevail undisturbed for seventy-seven years, when Mr. Erskine, afterwards Lord Erskine, introduced a new test, which was a distinct step in advance. In the year 1800 it may be remembered that a man named Hadfield was tried for shooting at the King in Drury Lane Theatre. Erskine undertook his defence. Hadfield imagined that he was in constant communication with the Almighty, that the world was coming to an end, and that he was called upon to sacrifice himself for its salvation. Not wishing to be guilty of suicide, it occurred to him that if he fired a pistol at the King his life would be taken by others, and thus the heavenly call would be obeyed. The Attorney-General, in his address to the jury on behalf of the Crown, had enunciated the old barbarous doctrine that to protect a person from criminal responsibility there must be a total deprivation of memory and understanding, when Erskine replied that if these expressions were to be taken literally, "no such madness ever existed in the world;" and in a speech which has been greatly admired, but which I have not time to quote, he declared that the existence of a delusion of which the criminal act was the "immediate and unqualified offspring" betokened a sufficient amount of insanity to exempt from punishment. He had no difficulty, of course, in showing that Hadfield's act was the direct outcome of his delusions, and, as a result of his eloquent defence, the judge stopped the prosecution and the man was acquitted. As much misconception has surrounded this question of the value of delusions as proof of insanity, and as many lawyers of the present day have not got beyond the view propounded by Erskine on the occasion to which I have just alluded, it may be well to state here that although delusions, when they can be shown to be present, do undoubtedly furnish evidence of insanity the importance of which cannot be overrated, yet it is equally true that insanity of a most dangerous type may

exist without delusions. And as to the obligation which, according to Erskine's dictum, would be imposed on the prisoner's counsel of showing that a given act of violence was the direct result of the delusion, of establishing a direct and palpable connection between them, it is one that it would be often impossible to fulfil, even when such a connection did really exist. Let me illustrate this by an example. An insane youth conceived such a passion for windmills that he was never happy or quiet except when he had one within view. To cure him of his infatuation his friends removed him to a place where there were no windmills. He had not been long in his new home before he was arrested for killing and mutilating a little girl. The connection between a fancy for windmills and such a terrible outrage was not very obvious; nevertheless it existed. The boy's object in killing the child was to ensure his removal from a place where he could find no windmills. To ask an advocate to trace the relationship between an insane act and an insane delusion is to require him to follow the reasoning of an insane mind—a task to which no man in his senses is equal.

The time had not yet come, however, for such a comparatively enlightened view as that propounded by Erskine to be accepted as a legal dogma, and in the next conspicuous trial of a similar kind there was something like a return to the time-honoured criterion. In 1812 the Prime Minister, Mr. Spencer Perceval, was killed by a madman named Bellingham, under the influence of insane delusions. Bellingham magnified his private grievances into national wrongs, and was convinced that if he could but obtain a public hearing the Government would be compelled by the country to make good his losses. In order to bring this about, and to give himself an opportunity of making a statement, he hit upon the idea of assassinating the head of the Government. He was placed upon his trial for murder, and Sir Vicary Gibbs, the Attorney-General, conducted the prosecution. In addressing the jury on behalf of the Crown, he declared that "a man may be deranged in his mind, his intellect may be insufficient for enabling him to conduct the common affairs of life, such as disposing of his property or judging

of the claims which his respective relations have upon him; and if he be so, the administration of the country will take his affairs into their management, and appoint to him trustees; but at the same time such a man is not discharged from his responsibility for criminal acts." "Upon the authority of the first sages of the country," he continued, "and upon the authority of the established law in all times, which law has never been questioned, although a man may be incapable of conducting his own affairs, he may still be answerable for his criminal acts if he possesses a mind capable of distinguishing between right and wrong." It will be observed that this dogma, in which the presiding judge, Lord Mansfield, concurred (with the result that the poor madman was executed), was a little less monstrous than that of Judge Tracy. At the same time it erects a standard of insanity which it is impossible for anyone to reach, and which is tantamount to a refusal to accept insanity under any circumstances as an excuse for crime. For some time to come, however, this test took its place in English law among those by which the degree of insanity necessary to exempt from punishment had to be measured.

I pass on now to the well-known case of McNaghten, who was tried in 1843 for the murder of Mr. Drummond in mistake for Sir Robert Peel, from whom he imagined himself to have received an injury. The prisoner was defended by the late Lord Chief Justice Cockburn, and was acquitted on the ground of insanity. A cry of indignation arose throughout the country, and the House of Lords took the opportunity of requesting from the judges an authoritative exposition of the law concerning the plea of insanity in criminal cases. A series of questions was propounded to them, and their replies to these questions have formed, from that time to this, the basis upon which our judges have directed the jury whenever the plea of insanity has been set up. The answers need not be quoted at length; a single passage will suffice to indicate the purport of the whole document. In reply to the second and third questions, the judges state that, in their opinion, "to establish a defence on the ground of insanity it must be clearly proved that at the time of committing the act the party

accused was labouring under such a defect of reason from disease of the mind as not to know the nature and quality of the act he was doing, or, if he did know it, that he did not know he was doing what was wrong." Thus was formulated the test which, although it never found its way into an Act of Parliament, has been treated ever since the year 1843 as though it were the law of the land. Just as the test propounded by Sir Vicary Gibbs was an advance upon that of Mr. Justice Tracy, so again this last authoritative exposition of the law imposed a test which marked a further advance in the direction of humanity and common sense. The test of Sir Vicary Gibbs was the power of distinguishing between right and wrong in the abstract; the test laid down by the judges was the power of distinguishing between right and wrong in reference to the particular act with which the accused is charged. The former constitutes a criterion which practically exempts no one; the latter, on the contrary, does every now and then afford a loophole for escape. Notwithstanding, however, that in this respect the more recently propounded test is distinctly in advance of its predecessors, I think I shall be able to show that it is still far from meeting the requirements of the case, either theoretically or practically; in other words, that it is out of harmony with our present knowledge of mental disease, and that the results of its practical application are in the highest degree unsatisfactory.

The mental functions of the brain may be described as threefold—intellectual, emotional, and volitional. No one can be said to be of sound mind unless all these functions are healthily performed. The legal test of insanity is simply a test of knowledge. It formulates that popular but erroneous idea of mind which makes it the equivalent of the intelligence, and which either ignores the emotions and the will, or, accepting the poetical physiology of Scripture, regards them as functions of the heart, the bowels, and the "reins." If it were a fact that when the mind is disordered, the intellectual faculty is usually the only one that suffers, the unscientific character of the test might be allowed to pass unchallenged. But it is not so. On the contrary, it is by no means unusual to find the disorder of

the emotions and the will out of all proportion greater than the disorder of the intellect, and this is especially the case in regard to those victims of insanity who are most likely to bring themselves within reach of the criminal law. It is a common experience in lunatic asylums to find that the very persons who are most dangerous to themselves and those about them are the most intelligent inmates in the institution. To apply, therefore, a mere intellectual test to such persons—to discharge, let us say, from an asylum, those who gave no evidence of intellectual deficiency or disorder, would be to let loose upon society a number of persons afflicted with the most dangerous of all forms of lunacy. The practical result of disregarding the faculty of volition is that a person may be, and often is, pronounced to be legally responsible for an act which he had no power to control, and is punished for it accordingly.

That I may not be accused of presenting a purely medical view of the subject, I will quote some observations of Sir James Stephen on this point. "No doubt," he says, "there are cases in which madness interferes with the power of self-control, and so leaves the sufferer at the mercy of any temptation to which he may be exposed; and if this be shown to be the case, I think the sufferer ought to be excused. . . . I do not think," he continues, "that it is expedient that a person unable to control his conduct should be subject to legal punishment. The fear of punishment can never prevent a man from contracting disease of the brain, or prevent that disease from weakening his power of controlling his own actions. . . . To threaten such a man with punishment is like threatening to punish a man for not lifting a weight which he cannot move."

In the year 1874 Sir James Stephen himself made an effort to improve the law relating to the plea of insanity, in a bill which was introduced into the House of Commons by Mr. Russell Gurney, and was entitled "A Bill to amend the Law of Homicide." In that bill it was provided that homicide should not be deemed criminal if, at the time of committing the act, the accused person was prevented by any disease affecting his mind (*a*) from knowing the nature of the act; (*b*) from knowing that it is forbidden

by law ; (*c*) from knowing that it is morally wrong ; (*d*) from controlling his own conduct.

The first three of these tests, it will be observed, are the same as those proposed by the judges in 1843, with this difference, that they are cleared from a certain amount of ambiguity. The judges had said that a person should not be responsible for his act if at the time of committing it he did not know that he was doing wrong. This expression was capable of two different interpretations. It might mean the knowledge that it was morally wrong, or the knowledge that it was contrary to the law, and sometimes one of these interpretations had been given to it, sometimes the other. Sir J. Stephen proposed to include them both, so that ignorance of the immorality of the act, or ignorance of its illegality, would equally excuse a person from responsibility.

The fourth test was quite new. For the first time it recognised the fact that insanity of such a nature as to render a person irresponsible might exhibit itself in a want of control over the will. And here we are brought face to face with the fiercely disputed question, whether there is or is not such a thing as irresistible impulse,—that is, whether persons apparently sane, and, at any rate, free from obvious delusion, may be impelled to insane acts by a force that they cannot control. Many eminent lawyers entirely disbelieve in such a phenomenon, and maintain that those who think otherwise have failed to discriminate between an impulse that is irresistible, and one that is simply not resisted. I cannot deny that medical witnesses have not unfrequently pressed this doctrine of irresistible impulse unduly, overlooking the fact that an insane impulse is not necessarily an irresistible one. "But," as Sir James Stephen remarks, "it is not because a man makes a foolish statement on that subject that the law is to put itself in a false position." That there are cases where the insanity reveals itself chiefly, if not solely, in acts of violence, the consequence of uncontrollable impulse, there is, unfortunately, no room for doubting.

An example of a striking kind is afforded in the case of poor Mary Lamb, the sister of the ever delightful Elia.

The sad story has been retold by Mrs. Gilchrist, how "Mary, worn out with years of nightly as well as daily attendance upon her mother, who was now wholly deprived of the use of her limbs, and harassed by a close application to needlework, to help her in which she had been obliged to take a young apprentice, was at last strained beyond the utmost pitch of physical endurance, 'worn down to a state of extreme nervous misery.'" One afternoon, having been moody and ill for a few days previously, she snatched a knife from the table in a sudden attack of frenzy, "and pursued the young apprentice round the room, when her mother interposing received a fatal stab, and died instantly." By some means or other legal proceedings were avoided, and after Mary had resided many months in a private asylum at Islington, Charles Lamb entered into a "solemn engagement that he would take his sister under his care for life," and thus obtained her release. But she suffered a relapse before the end of the year, and was subject to similar outbreaks for the rest of her life, the mental depression which preceded the attacks being always accepted as an indication that she must be at once placed under the restraint of an asylum. Probably it was by that means alone that further catastrophes were avoided.

To return to Mr. Gurney's bill. It was referred to a Select Committee of the House of Commons, and amongst the witnesses examined were Lord Bramwell and Lord Blackburn. The late Lord Chief Justice Cockburn submitted a statement in writing. Lord Bramwell, in the course of his examination, declared (somewhat ungrammatically) that "the law lays down such a definition of madness that nobody is hardly ever mad enough to be within it." "Yet," he went on to say, "it is a logical and good definition," and he added that he had no wish to see it altered.

Lord Blackburn's evidence is equally remarkable. "We cannot fail," he said, "to see that there are cases where the person is clearly not responsible, and yet knew right from wrong," and he gives an instance; yet he, too, expressed himself as satisfied with the existing law.

Lord Chief Justice Cockburn, on the other hand, strongly supported the proposed change. In his letter to the com-

mittee he says, "As the law now stands, it is only when mental disease produces incapacity to distinguish between right and wrong, that immunity from the penal consequences of crime is admitted. The present bill introduces a new element—the absence of the power of self-control. I concur most cordially in the proposed alteration of the law, having been always strongly of opinion that, as the pathology of insanity abundantly establishes, there are forms of mental disease in which, though the patient is quite aware that he is about to do wrong, the will becomes overpowered by the force of irresistible impulse. The power of self-control when destroyed or suspended by mental disease becomes, I think, an essential element of responsibility."

Mr. Gurney's bill, however, as a whole, failed to commend itself to the committee, and has never become law.

If there must be a legal definition of the precise degree of insanity which is to exempt a person from criminal responsibility, the tests that Sir James Stephen here proposed are infinitely less objectionable than those to which our judges still adhere. But I think it can be shown that insanity is too subtle a disease to be estimated either qualitatively or quantitatively by any rigidly defined tests, however clear and comprehensive. The popular notions that one man can recognise lunacy as well as another, that its recognition is merely a matter of common sense, requiring no special training or experience, and that it invariably betrays itself by definite and unmistakable symptoms, are altogether erroneous. It is only necessary to pay a visit to a lunatic asylum, and to enter into conversation with its inmates, in order to have these views dispelled. It will be found that in a lunatic asylum the raving maniac is an exception, the majority of the inmates being quiet, orderly persons, who present, so far as their outward appearance goes, little or nothing to distinguish them from other people. Probably no one visits such an institution for the first time without being puzzled to know which are the officials and which the inmates.

Like other chronic disorders, insanity is apt to come on insidiously. Its early symptoms are very often extremely slight and extremely obscure; so much so that they are

almost invariably either misinterpreted or overlooked by the sufferer's friends. A certain alteration of manner, a disposition to talk a little more or a little less than usual, an unwonted recklessness in expenditure, a tendency to be suspicious of those who have hitherto been implicitly trusted, a slight failure in business capacity; these may be all the symptoms that mark the departure from mental health, until one day the smouldering insanity betrays itself in an act of violence. Suppose that act of violence to be one that brings its perpetrator within reach of the law, the medical witness who supported the plea of insanity by recounting the premonitory symptoms just mentioned would be smiled at as an amiable but foolish and misguided visionary. Yet let us look for a moment at some other functional diseases of the nervous system,[1] and see whether, reasoning from analogy, such a course of events is not exactly what we might expect. The more common brain diseases, apoplexy and softening, are not primarily diseases of the nerve-tissue, but of the blood-vessels supplying that tissue. In apoplexy the diseased blood-vessel gives way, and the brain is injured as a consequence; in softening, the brain undergoes deterioration from a failure on the part of the diseased blood-vessels to supply it with the material necessary for its maintenance. Insanity, on the other hand, is a functional disorder of the nervous tissue itself, and therefore we must look for the analogies we seek, not amongst the more common and grosser lesions of the brain, but amongst other functional disorders of the nerve-structures themselves,—such, for example, as epilepsy and chorea.

The analogy between epilepsy and those forms of insanity which are accompanied with sudden outbursts is a very close one. An epileptic fit is due, speaking broadly, to a disorder of those portions of the highly organised nervous tissue lying on the surface of the brain, whose function it is to take the supreme direction of the movements of the voluntary muscles of the body. The outburst of maniacal fury is due to a corresponding disorder of those portions of

[1] By the words "functional diseases" I mean diseases which are not necessarily accompanied with such structural changes as are capable of being recognised after death.

the same tissue which have for their function the control of the thoughts, the emotions, and the will. The most striking feature in each of these phenomena is its suddenness. The insane impulse and the epileptic fit have both something of the nature of an explosion. The causes that have been at work in each case have been cumulative in their action, and only when the accumulated irritation has reached a certain degree of intensity has there been any, or, if any, but the very slightest outward indication of the gathering storm. The epileptic may have had one or two transient attacks of giddiness, or an occasional look of vacancy, and the madman may have exhibited one or more of those comparatively trifling alterations of character and manner which I have enumerated; but in neither of the cases I am supposing will there have been any premonitory symptoms sufficiently striking to attract the attention of persons who have had no special training or experience in such matters. The epileptic fit is a storm of muscular movement, a general convulsion of the voluntary muscles; the madman's violence is a storm of thought, emotion, and will, betraying itself in extravagant conduct; it, too, is essentially a convulsion. The analogy may be pursued further. After the epileptic fit and the phenomena that sometimes immediately follow it have subsided, the individual to all appearance returns to his normal condition, giving no indication of what he has gone through beyond perhaps one or two bruises. Similarly, after the insane act of violence, there may be an apparent return of mental soundness, such as to make it difficult, if not impossible, to discover any evidence of insanity.

After what has been said it will occasion no surprise to hear that these two kinds of storms occasionally alternate in the same individual, an outburst of insane fury or violence taking the place of an epileptic fit, and *vice versâ*. Nor will it be wondered at that the one kind of explosion may occur in the parent and the other in the offspring.

But the object I have had in view in tracing the analogy is to point out that while there are many cases of insanity where the malady is patent to the whole world, there are others, and those precisely the cases most likely to come up for trial on criminal charges, where the disease is

exceedingly difficult to recognise, even by the trained observer, and by the untrained impossible. The spectacle of an epileptic seizure taking place suddenly in an apparently healthy person is one of such every-day occurrence that it excites scarcely any notice; but if a medical witness stands up in court and suggests that an atrocious and apparently motiveless act of violence was the insane act of the apparently calm prisoner in the dock, he is in danger of being ridiculed as a theorist. That such, however, is the explanation of a certain number of acts of violence cannot be doubted, and the analogy here traced to the well-known phenomena of epilepsy may serve to bring this fact home to us, and to remind us that there is nothing in it which is out of harmony with other facts that are daily before our eyes.

Let us now look for a moment at the analogies which insanity presents with the disorder popularly known as St. Vitus's dance. Those of you who have had the opportunity of seeing cases of this kind need no description of it; but for the sake of those who have not, I may say that the prominent symptom of chorea is a series of irregular and involuntary contractions of those muscles of the body that are normally under the control of the will, giving rise to spasmodic jerkings of the limbs and grotesque contortions of the features. The disorder has been called an insanity of the muscles, and indeed it is a condition which has the closest analogy to insanity. In the one case the muscles are excited to irregular and purposeless action, in the other the ideas and emotions are affected in a very similar manner. But, for my present purpose, the most important part of the analogy is observed in connection with the earliest manifestations of these disorders. St. Vitus's dance is chiefly a disorder of children; the slight twitchings that mark its onset are almost always mistaken for naughty tricks, and the child, instead of being treated as a subject of disease, is visited with reproof and punishment. The child's features are slightly contorted; it is thought to be making faces. The muscles of its hands and arms being no longer in complete subjection to the will, it lets things fall; it is thereupon scolded for carelessness. This goes on for

a time, until the development of the disorder at length forces home the conviction that the grimaces and twitchings are due not to naughtiness, but to disease. If this mistake is so constantly made where the symptoms are as evident to the senses as any symptoms can possibly be, how can it be wondered at that the earliest signs of mental aberration should be difficult of recognition and almost invariably misunderstood,—should, in fact, be attributed to the innate depravity of human nature, and be punished accordingly?

I pass on to show how inadequate the tests are when they come to be applied to actual cases. Take, for example, the case of Hadfield, the man who shot at George III. It is evident that he knew the act he was about to commit was murder, and that he would thereby render himself liable to the penalty of death, for his express object was to do something which would result in the sacrifice of his own life, a sacrifice which he believed to be necessary for the salvation of the world. Had the judges' formulæ been laid before the jury in that case—had they been told that they must find the prisoner guilty provided they were satisfied that he knew the nature and quality of the act he was committing, and knew that in committing it he was doing wrong: and had they done as they were told, Hadfield must have been hanged as a sane criminal.

Another instance will be found in the evidence of Lord Blackburn before the Select Commitee of the House of Commons in 1874. The case was that of a poor woman who was tried for killing a girl of fifteen. The prisoner's insanity was proved beyond a doubt; yet she knew the nature and quality of her act, and knew that what she had done was wrong. The prescribed tests were here so manifestly inapplicable that the judge declined to place them before the jury, knowing that if he did they would, to use his own expression, take the bit in their own teeth. He told them there were exceptional cases, and they thereupon brought in a verdict of insanity.

But instances of this kind, where the judge, as it were, takes the law into his own hands, or boldly overrides it, are very rare. Under ordinary circumstances, the result of the trial is by no means so satisfactory as in the case alluded to

by Lord Blackburn. Let me mention, by way of illustrating the more usual course of events, two trials that occurred within a very short time of each other in the year 1883. The first was that of a man named William Gouldstone, who after exhibiting symptoms of intense mental depression for several days, deliberately killed his five children. The second was that of James Cole, who, while labouring under a delusion that his wife had hidden people under the floor and in the cupboard to try to poison him, took up his unoffending child of three and a half years from its cradle and killed it by knocking its head violently against the wall. In the one case several of the members of the family were proved to be insane, and in the other there was evidence of a strong family predisposition to epilepsy, which is first cousin to insanity. The men themselves were both undoubtedly insane. The jury, however, were told in both instances that the only question for them was whether the prisoner knew the nature and quality of the act he was committing, and knew that it was wrong. As, on their own showing, both of them intended to kill their children, and knew that they had thereby incurred the penalty of death, the jury, following the judge's direction, had no alternative but to reject the plea of insanity, and each of the men was accordingly sentenced to be hanged without any hope of mercy being held out to him. Fortunately, owing to the strong representations of some medical men and of the medical press, the Home Secretary was induced to authorise an examination by two competent physicians, the result of their report being, of course, that, instead of being sent to the scaffold, the men were committed to the safe keeping of a lunatic asylum.

Surely, even if there were no other consideration involved, the fact that sentence of death is so repeatedly reversed in these cases by the Home Secretary, after a secret and informal inquiry, is alone sufficient to condemn the present state of things. Had there been time I might have put this part of my case more strongly. I might, for instance, have referred to cases where the tests had been applied and the plea of insanity rejected, and where, no appeal having been made to the Home Secretary, the poor lunatic has been hanged with-

out further inquiry. One such case in which I happened myself to be engaged as a witness I am not likely ever to forget. No one, I imagine, could have heard the clear evidence that was produced at the trial on that occasion as to the man's insanity, and then have read how, when the moment for his execution arrived, the poor fellow mounted the scaffold with the surprised look of a man awaking from a dream, utterly failing to comprehend the meaning of it all, without being shocked at the scandalous inhumanity of the proceeding, and without feeling that he would be guilty of moral cowardice if, when occasion offered, he did not raise his voice against the system that sanctioned it.

But I must hasten to indicate, as briefly as possible, the changes which, it seems to me, would help to remedy the evils to which I have called attention.

We have seen how the legal tests of insanity underwent alteration from time to time, in accordance with the growing tendency to a more humane regard for the unfortunate victims of that disease. We have also seen that no change has been made in them since 1843, now upwards of fifty years ago, although the rules that were then formulated are now so far behind the time as to be discreditable. A further change has become imperative. What direction ought that change to take?

In the first place the existing tests, which are mere knowledge tests, should be entirely abolished, the question of responsibility depending not upon a person's knowledge, but upon his capacity for acting upon that knowledge; that is, upon his power of self-control.

Secondly, in any future legislation on this subject, provision should be made for the case of idiots and imbeciles, to whom no reference is made in the existing rules, but who certainly ought not to be prevented from pleading insanity because their insanity happens to be due to defect and not to disease.

In the next place it is well worth considering whether the present form of verdict might not be altered with advantage. Where the only defence is that of insanity, the crime itself being admitted or proved, a jury has at present but two courses before it, viz. (1) to reject the plea and

pronounce the prisoner guilty, when he will be punished as a sane criminal; or (2) to accept the plea and pronounce him not guilty on the ground of insanity, when he will be consigned to a criminal lunatic asylum during Her Majesty's pleasure, which generally means for life. Not to mention the absurdity of returning a verdict of not guilty when the guilt is proved, this method, by recognising no difference between one insane criminal and another, or between an insane person who has committed a serious crime, and one whose offence is comparatively trifling, has the effect of preventing the plea of insanity from being urged as often as it ought to be. There is only one punishment, that of death, which is more dreaded by rational beings than a lifelong incarceration in a criminal lunatic asylum; hence, in the case of all crimes except that of murder, a prisoner's counsel almost invariably prefers that his client should run the risk of the ordinary legal punishment for his offence, rather than that by pleading insanity he should expose himself to a worse fate. It seems to me that in every case where the question of a prisoner's insanity arises the court should institute two separate inquiries, and the jury return two separate verdicts.

The first inquiry should be whether the prisoner committed the crime with which he is charged. In case of the verdict on this inquiry being guilty, a second inquiry should take place as to the prisoner's mental condition at the time the act was committed. Supposing the insanity to be established, a discretionary power should rest with the judge, either to inflict a modified punishment, or to consign at once to an asylum. It cannot be doubted that there are varying degrees of responsibility in insane criminals, as there are certainly varying degrees in the character of the crimes perpetrated by them, and the only way to ensure justice being done is to take into account the whole of the circumstances in each case, and deal with it accordingly.

Sir Herbert Stephen, in a recent letter to the 'Times,' has described exceedingly tersely the respective functions of the judge, the jury, and the medical witnesses in regard to this question of legal responsibility. It is, he says, not the province of the medical witness to express any opinion as to

the legal responsibility of the accused. The question for him is whether A B is insane, and if so to what extent. It is for the judge to say what sort of insane persons are irresponsible, and finally it rests with the jury to decide whether A B, the accused, comes within that category.

As the jury, in arriving at a conclusion with reference to a prisoner's insanity, must necessarily be guided almost entirely by the medical evidence, it is important that that evidence should invariably be the best that is obtainable.

My last suggestion, therefore, is that in every case where the defence is to be that of insanity, two independent physicians, appointed by the State, should be required to institute an inquiry, *before* the trial, into the state of mind of the accused. At present, unless the prisoner or his friends are able to engage the services of a solicitor, and to pay for the evidence of experts, the defence, generally undertaken at the request of the judge by some junior member of the bar at the moment of trial, is conducted under every conceivable disadvantage, and the plea is either entirely unsupported by medical evidence, or is supported merely by the testimony of the medical men who happen to have been brought into contact with the accused, and who may have had no special experience in insanity, or in the art of giving evidence.

Such an inquiry as is here suggested is now frequently instituted, at the instance of the Home Secretary, *after* trial and sentence ; why should not the same machinery be set in motion *before* the trial ? Not only would such a proceeding be more regular, but it would have this great advantage, that the experts would give their evidence upon oath in open court, and that an opportunity would be afforded for cross-examination.

The principle which it is here suggested should be adopted in cases of alleged insanity has already been acted upon in cases of alleged poisoning. Two distinguished toxicologists have been appointed analysts to the Home Office, their duty being to conduct the necessary analyses in cases of suspected poisoning, and to give evidence as to the result of their inquiry at the trial of the accused. It would not be difficult to find two physicians of acknowledged eminence as authorities on insanity, competent to act in the capacity of

experts, who would possess the confidence both of the medical profession and of the public.

It is now nearly ten years since I made these suggestions. I claimed no originality for them then, and I claim none now. Most of them have no doubt been made before in one form or another. Dr. Weatherley's proposal in the paper already alluded to was a somewhat different one. He proposed that no person should be held legally responsible for a criminal act if he could be proved to be of sufficiently unsound mind to be certifiable. I will not detain you by discussing the respective merits of these suggestions; my chief aim to-night has been to place before you, as concisely as I could, a general survey of this important subject, and especially those medical aspects of it which, in the course of my own reading and experience, have appeared to me most to demand consideration.

In bringing my remarks to a conclusion I make no apology for quoting and appropriating the words with which the late Dr. Guy, one of our foremost medical jurists, closes his latest utterance on this question. "If," he says (in the last chapter of his 'Factors of the Unsound Mind') "I seem to have handled a great subject unworthily, I plead in mitigation of my offence its immense extent and admitted difficulty. If I have run counter to any man's preconceived opinions, let me assure him that it is not with arrogance or pleasure that I differ from him. To him I desire to attribute that which I claim for myself—a paramount love of truth, and a public spirit which will not suffer me to forget that while I am a member of a noble profession, I am also a citizen of a great State, a State which if in some respects she claims to *teach the nations how to live,* in others shows herself not too proud to learn; a State that has no higher title to respect than that which she derives from her humanity; a State that would suffer indelible disgrace if, ceasing to regard the madman as an object of profound compassion, she should come to treat him as a thing only calculated to excite feelings of intolerance and disgust."